

The Motion is **GRANTED**. The dismissal is set aside and Judgment for the Plaintiff will be entered in the amount of \$2,445.00. Plaintiff provided a proposed Order and proposed Judgment, both of which will be modified to reflect the Court's ruling.

IN RE: CARTER

CASE NUMBER: 26CV-0210136

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Michael Wilson Carter seeks to change his name to Michael Sea. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

CHATHA, ET AL. V. TORNADO ALLEY TURBO, INC., ET AL.

CASE NUMBER: 22CV-0200483

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Amitoj Sandhu's claims. The Petition was filed by the minor's mother/Guardian Ad Litem Sakhjit Sandhu. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. A hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court finds good cause to excuse the appearance of the minor. The Court will ask counsel to voir dire Petitioner regarding the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order Approving Compromise that was received on May 27, 2026. **An appearance by the Petitioner is necessary on today's calendar.**

FALL RIVER VALLEY VOLUNTEER FIRE DEPARTMENT, ET AL. VS. FALL RIVER VALLEY FIRE PROTECTION DISTRICT, ET AL.

CASE NUMBER: 24CV-0206286

Tentative Ruling on Motion for Judgment on the Pleadings: Defendants Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan move for judgment on the pleadings pursuant to CCP § 438(c)(1)(A). Plaintiffs Fall River Valley Volunteer Fire Protection Department and McArthur Volunteer Fire Department, Inc. oppose the Motion.

Meet and Confer. CCP § 439(a) requires the moving party to meet and confer before filing a motion for judgment on the pleadings. The moving party shall file a declaration showing the meet and confer efforts. CCP § 439(a)(3). The Declaration of John Kenny satisfies this requirement.

Request for Judicial Notice. Defendant requests the Court take judicial notice of Shasta Local Agency Formation Commission Resolution 2020-09 and Fall River Valley Volunteer Fire Department's California Secretary of State Corporation filing dated 3/18/22. The request is denied. The request was made on May 22, 2026, along with the Reply brief. Considering these materials would be prejudicial to Plaintiff, who did not have the opportunity to oppose.

Merits of Motion. CCP § 438(c)(1)(A) provides a plaintiff may move for judgment on the pleadings if the complaint states sufficient facts to constitute a cause of action and the answer does not state facts sufficient to constitute a defense to the complaint. The grounds for the motion shall appear on the face of the challenged

pleading or from any other matter of which the court may take judicial notice. CCP § 438(d).

“A motion for judgment on the pleadings, like a general demurrer, challenges the sufficiency of the plaintiff’s cause of action and raises the legal issue, regardless of the existence of triable issues of fact, of whether the complaint states a cause of action. [Citation.]” *Brownell v. Los Angeles Unified School Dist.* (1992) 4 Cal.App.4th 787, 793. The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer. *Baughman v. State of California* (1995) 38 Cal.App.4th 182, 187. “We treat the pleadings as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Ibid.*)” *Ellerbee v. County of Los Angeles* (2010) 187 Cal.App.4th 1206, 1213-1214.

Plaintiff’s Complaint alleges causes of action for: 1) Breach of Contract, 2) Breach of Implied Covenant of Good Faith and Fair Dealing, 3) Conversion, 4) Negligence, and 5) Declaratory Relief. Defendant’s Motion is made on the grounds that the Complaint does not state sufficient facts to constitute a cause of action for any relief sought.

First, Second, and Fourth Causes of Action. Plaintiff’s First and Second Causes of Action, for Breach of Contract and Breach of Covenant of Good Faith and Fair Dealing, are based on an alleged breach of contract. Plaintiffs allege the contract was breached “on or about October 2023” (Complaint p. 3, ln. 19). Plaintiff’s Fourth Cause of Action for Negligence is vague and uncertain but appears to also relate to the alleged contract.

Plaintiff did not allege the presentation of a government claim. “Government Code section 900 et seq. establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must file a timely claim for money or damages with the public entity. (§ 911.2.) The failure to do so bars the plaintiff from bringing suit against that entity. (§ 945.4.)” *State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1237. Plaintiff’s failure to allege compliance with the government claim presentation requirement entitles Defendant to judgment on the pleadings on the First, Second, and Fourth Causes of Action for failure to state sufficient facts to constitute a cause of action. Plaintiff concedes this point in the Opposition brief, stating “Defendants correctly assert that the Complaint fails to state facts showing that a claim was submitted.” (Opp. p. 4, ln. 24-25.) Plaintiff argues that Plaintiffs have submitted government claims and that amendment should be permitted.

Plaintiff generally argues that Plaintiff “can surely remedy most, if not all, of any issues raised by Defendants in an amended complaint specifically as they relate to additional facts, such as, names, dates, etc. that would support the causes of action. For example, an amended complaint will have the agreements attached as exhibits resolving that issue. It will also set forth facts about the claims process.” (Opp. p. 5, ln. 8-12.) The time and place for setting forth those arguments is here, in Plaintiff’s Opposition.

Defendant has carried their burden of establishing that Plaintiff has failed to state sufficient facts to constitute a cause of action against Defendants. Plaintiff has failed to rebut any of these arguments, and only generally argues that amendments could cure the defects in the Complaint.

Third Cause of Action. Plaintiff’s cause of action for conversion is not permitted by statute. Gov. Code section 815 provides that a public entity is not liable for an injury arising out of an act or omission of the public entity or a public employee or any other person, unless otherwise provided by statute. Here, Plaintiff’s Complaint alleges Defendants Gomes and Morgan were District employees acting in the scope of their employment. The common law cause of action for conversion is unsupported by an allegation of any statutory grounds for liability against the public entity or its employees.

Fifth Cause of Action. Plaintiff’s cause of action for declaratory relief is derivative of the first through fourth causes of action. As discussed above, each of the first through fourth causes of action fail to state sufficient facts to constitute a cause of action. Therefore, the derivative fifth cause of action also fails.

Leave to Amend: "In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." *Gami v. Mullikin Medical Ctr.* (1993) 18 Cal.App.4th 870, 876. After a judgment on the pleadings is granted, the same standards apply in granting leave to amend as for demurrers and leave is routinely granted. See Code Civ. Proc., § 438(h); *Virginia G. v. ABC Unified Sch. Dist.* (1993) 15 Cal. App. 4th 1848, 1852 [holding that when a motion for judgment on the pleadings is granted, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment].) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (Code Civ. Proc., § 438(h)(2).) If, as Plaintiff represents, Plaintiff did present timely government claims as required by Gov. Code section 900 et seq., then there is a reasonable possibility that the Complaint can be amended to state a cause of action.

The Motion for Judgment on the Pleadings is **GRANTED** with leave to amend. Plaintiff has 30 days leave to amend from notice of entry of order. A proposed order has been lodged and will be modified.

IN RE: HARDING

CASE NUMBER: 26CV-0210051

Tentative Ruling on Petition for Change of Name: Petitioner Katie Anna Harding seeks to change her name to Katie Anna Smith. Petitioner also seeks to change the last name of her three minor children. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted.

Additionally, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). If the non-petitioning parent lives out of state, service may be accomplished by certified mail. CCP §§ 415.10 and 415.40. Here, the fathers are not listed in the Petition. However, three Proofs of Service were filed indicating that Eric Stock, Damien Harding, and Anthony Retamoza were served by mail at addresses in California. If these individuals are the fathers of the minors, they will need to be personally served.

An appearance by Petitioner is necessary on today's calendar to confirm the names of the fathers and to select a new hearing date. Petitioner will need to obtain an Amended Order to Show Cause with the new hearing date and effect personal service on each father no less than 30 days prior to the continued hearing date. Additionally, Petitioner will need to provide the original Certificate of Publication.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Reconsideration: Plaintiffs Tiffanie Jones, Kim Harmon, and Stephen Huston move for reconsideration of a ruling made on Defendant Sally Taylor's Motion to Terminate the Case on May 11, 2026. While the motion was timely filed per CCP § 1008, Plaintiffs have not complied with CCP § 1005(b) which requires that the moving papers be filed and served at least sixteen court days prior to the hearing. The motion was filed on May 18, 2026 for a hearing date on June 1, 2026. This is untimely. The Proof of Service contained within the motion does not reflect how or when the moving papers were served, is not signed, and not dated. The Motion for Reconsideration is **DENIED** for being filed untimely and because there is no Proof of Service indicating that Defendant was noticed with the motion. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order.